

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0000122-2024

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Carlos J. Torres

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CASE INFORMATION

<u>Judge Assigned:</u> Lightsey, Chesley	<u>Date Filed:</u> 01/08/2024	<u>Initiation Date:</u> 01/08/2024
<u>OTN:</u> U 285817-0	<u>LOTN:</u>	<u>Originating Docket No:</u> MC-51-CR-0014942-2023
<u>Initial Issuing Authority:</u> The Honorable David H. Conroy	<u>Final Issuing Authority:</u>	
<u>Arresting Agency:</u> Philadelphia Pd	<u>Arresting Officer:</u> Lynch, Eric	
<u>Complaint/Citation No.:</u> 2324046976-0014942	<u>Incident Number:</u> 2324046976	
<u>County:</u> Philadelphia	<u>Township:</u> Philadelphia City	
<u>Case Local Number Type(s)</u>	<u>Case Local Number(s)</u>	
Originating Docket Number	MC-51-CR-0014942-2023	
District Control Number	2324046976	
Originating Document Number	2324046976-0014942	

STATUS INFORMATION

<u>Case Status:</u> Closed	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u> 08/19/2023
	10/28/2024	Sentenced/Penalty Imposed	
	10/28/2024	Awaiting Sentencing	
	05/29/2024	Awaiting Trial Readiness Conference	
	01/12/2024	Awaiting Scheduling Conference	
	01/08/2024	Awaiting Filing of Information	
			<u>Complaint Date:</u> 08/20/2023

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	01/19/2024	11:00 am	1104	Trial Commissioner Dana Murray	Scheduled
Scheduling Conference	02/12/2024	9:00 am	507	Judge Barbara A. McDermott	Continued
Scheduling Conference	03/11/2024	9:00 am	507	Judge Barbara A. McDermott	Continued
Scheduling Conference	04/08/2024	9:00 am	507	Judge Barbara A. McDermott	Continued
Scheduling Conference	04/17/2024	9:00 am	507	Judge Barbara A. McDermott	Scheduled
Scheduling Conference	04/26/2024	9:00 am	708	Judge Chesley Lightsey	Scheduled
Jury Trial	05/08/2024	9:00 am	708	Judge Chesley Lightsey	Scheduled
Motions Hearing	05/29/2024	9:00 am	708	Judge Chesley Lightsey	Scheduled
Motions Hearing	07/19/2024	9:00 am	708	Judge Chesley Lightsey	Continued
Motions Hearing	09/06/2024	9:00 am	708	Judge Chesley Lightsey	Scheduled
Trial Readiness Conference	09/26/2024	9:00 am	708	Judge Chesley Lightsey	Scheduled
Jury Trial	10/01/2024	9:00 am	708	Judge Chesley Lightsey	Continued
Jury Trial	10/28/2024	9:00 am	708	Judge Chesley Lightsey	Scheduled

CONFINEMENT INFORMATION

<u>Confinement</u>	<u>Confinement</u>	<u>Destination</u>	<u>Confinement</u>	<u>Still in</u>
<u>Known As Of</u>	<u>Type</u>	<u>Location</u>	<u>Reason</u>	<u>Custody</u>
02/27/2025	State Correctional Institution	SCI Somerset		Yes

DEFENDANT INFORMATION

Date Of Birth: 08/06/2000 City/State/Zip: Philadelphia, PA 19134

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Defendant	Torres, Carlos J.

BAIL INFORMATION

Torres, Carlos J.

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	08/20/2023	Monetary	Municipal Court	10.00%	\$1,000,000.00
Set	01/08/2024	Monetary	Common Pleas	10.00%	\$700,000.00
Revoke	05/29/2024	Monetary	Common Pleas	10.00%	\$700,000.00

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CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
2	2	F2	18 § 2702 §§ A4	Aggravated Assault - Attempts to cause or causes BI with deadly weapon	07/10/2023	U 285817-0
5	5	M1	18 § 907 §§ A	Poss Instrument Of Crime W/Int	07/10/2023	U 285817-0

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	01/05/2024	Not Final
2 / Aggravated Assault - Attempts to cause or causes BI with deadly weapon	Held for Court	F2 18 § 2702 §§ A4
5 / Poss Instrument Of Crime W/Int	Held for Court	M1 18 § 907 §§ A

Proceed to Court

Defendant Was Not Present

Information Filed	01/10/2024	Not Final
2 / Aggravated Assault - Attempts to cause or causes BI with deadly weapon	Proceed to Court	F2 18 § 2702 §§ A4
5 / Poss Instrument Of Crime W/Int	Proceed to Court	M1 18 § 907 §§ A

Guilty Plea - Negotiated

Jury Trial	10/28/2024	Final Disposition
2 / Aggravated Assault - Attempts to cause or causes BI with deadly weapon	Guilty Plea - Negotiated	F2 18 § 2702 §§ A4
Lightsey, Chesley	10/28/2024	
Confinement	Min of 3.00 Years Max of 6.00 Years 3 years - 6 years	10/28/2024

Defendant is Sentenced to 3-6 Years State Incarceration

Credit to be calculated by the Phila. Prison System

Court Recommends Defendant be Reviewed for Boot Camp Eligibility.

To participate in drug or alcohol screening and treatment programs, including outpatient and inpatient programs.

This Sentence to Run Concurrent to CP-51-CR-7334-2023.

Defendant is to pay imposed mandatory court costs.

5 / Poss Instrument Of Crime W/Int	Guilty Plea - Negotiated	M1	18 § 907 §§ A
Lightsey, Chesley	10/28/2024		
Probation	Max of 4.00 Years 4 years		

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LINKED SENTENCES:

Link 2

CP-51-CR-0007334-2023 - Seq. No. 1 (35 § 780-113 §§ A30) - Probation is Concurrent with

CP-51-CR-0007334-2023 - Seq. No. 1 (35 § 780-113 §§ A30) - Confinement is Concurrent with



- Link 1

Link 1

CP-51-CR-0000122-2024 - Seq. No. 5 (18 § 907 §§ A) - Probation is Consecutive to

CP-51-CR-0000122-2024 - Seq. No. 2 (18 § 2702 §§ A4) - Confinement

COMMONWEALTH INFORMATION

Name: Philadelphia County District Attorney's
Office
District Attorney

Supreme Court No:

Phone Number(s):

215-686-8000 (Phone)

Address:

3 South Penn Square
Philadelphia, PA 19107

ATTORNEY INFORMATION

Name: Andrew David Montroy
Private

Supreme Court No: 201197

Rep. Status: Active

Phone Number(s):

215-735-1850 (Phone)

Address:

1500 Walnut St
Ste 1060
Philadelphia, PA 19102-3520

Representing: Torres, Carlos J.

ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	01/08/2024		Court of Common Pleas - Philadelphia County
Held for Court			
3	01/08/2024		Conroy, David H.
Bail Set - Torres, Carlos J.			
1	01/10/2024		Krasner, Larry
Information Filed			
1	01/22/2024		Murray, Dana
Defense Attorney to be Appointed			
1	01/23/2024		Steenon, Derek Alan
Entry of Appearance			
4	02/12/2024		McDermott, Barbara A.
Commonwealth Request For Continuance Discovery Incomplete			

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Sequence Number	CP Filed Date	Document Date	Filed By
4	03/11/2024		McDermott, Barbara A.
Defense Request For Continuance For Further Investigation			
4	04/08/2024		McDermott, Barbara A.
Defense Request For Continuance Attorney Failed to Appear			
5	04/17/2024		McDermott, Barbara A.
Defense Request For Continuance Jury Demand			
1	04/25/2024		Montroy, Andrew David
Entry of Appearance			
1	04/26/2024		Lightsey, Chesley
Scheduling Conference Held			
4	04/26/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	05/06/2024		Montroy, Andrew David
Omnibus Pre-Trial Motion			
1	05/08/2024		Lightsey, Chesley
Defense Request For Continuance For Further Investigation			
4	05/08/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	05/22/2024		Montroy, Andrew David
Motion for Release Pursuant to Rule 600			
1	05/29/2024		Lightsey, Chesley
Order Granting Motion to Revoke Bail			
4	05/29/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			

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8	05/29/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
10	05/29/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
11	05/29/2024		Lightsey, Chesley
Order Granting Motion to Revoke/Release and Forfeit Bail - Torres, Carlos J.			
12	05/29/2024		Court of Common Pleas - Philadelphia County Lightsey, Chesley
Commitment Philadelphia County Sheriff's Office 05/29/2024 Philadelphia Department of Prisons 05/29/2024			
13	05/29/2024		Philadelphia County District Attorney's Office
Motion to Revoke Bail			
14	05/29/2024		Court of Common Pleas - Philadelphia County Lightsey, Chesley
Short Certificate			
1	05/31/2024		Lightsey, Chesley
Order Granting Motion to Revoke Bail Bail Intake 05/29/2024			
1	07/15/2024		Court of Common Pleas - Philadelphia County
Short Certificate			
1	07/16/2024		Montroy, Andrew David
Motion to Quash			

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1	07/24/2024		Lightsey, Chesley
Court Request For Continuance Courthouse Closed			
5	07/24/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	08/08/2024		Court Appointment QAU
Order Granting Motion for Counsel Fees			
1	09/03/2024		Philadelphia County District Attorney's Office
Motion in Limine			
1	09/05/2024		Montroy, Andrew David
Brief in Opposition to Motion In Limine			
1	09/06/2024		Lightsey, Chesley
Order Denying Motion to Quash			
2	09/06/2024		Lightsey, Chesley
Order Denying Motion in Limine			
1	09/12/2024		Lightsey, Chesley
Order Denying Motion to Quash			
Lightsey, Chesley 09/06/2024			
2	09/12/2024		Lightsey, Chesley
Order Denying Motion in Limine			
Lightsey, Chesley 09/06/2024			
1	09/26/2024		Lightsey, Chesley
Order Granting Motion for Continuance			
1	10/01/2024		Lightsey, Chesley
Status Listing			

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1	10/28/2024		Lightsey, Chesley
Guilty Plea - Negotiated			
2	10/28/2024		Lightsey, Chesley
Order - Sentence/Penalty Imposed			
4	10/28/2024		Court of Common Pleas - Philadelphia County
Penalty Assessed			
5	10/28/2024		Court of Common Pleas - Philadelphia County Lightsey, Chesley
Itemized Account of Fines, Costs, Fees, and Restitution			
Fines and Costs			
10/28/2024			
6	10/28/2024		Court of Common Pleas - Philadelphia County Lightsey, Chesley
Court Commitment State or County Correctional Institution			
Philadelphia Department of Prisons			
10/28/2024			
1	12/27/2024		Philadelphia County Office of Judicial Records
Entry of Civil Judgment			

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CASE FINANCIAL INFORMATION

Last Payment Date: 12/29/2025

Total of Last Payment: -\$107.16

Torres, Carlos J. Defendant	<u>Assessment</u>	<u>Payments</u>	<u>Adjustments</u>	<u>Non Monetary Payments</u>	<u>Balance</u>
Costs/Fees					
Motion Filing Fee - Omnibus (Philadelphia)	\$15.00	(\$15.00)	\$0.00	\$0.00	\$0.00
Filing Fee (Philadelphia)	\$12.50	(\$12.50)	\$0.00	\$0.00	\$0.00
Motion Filing Fee (Philadelphia)	\$12.50	(\$12.50)	\$0.00	\$0.00	\$0.00
ATJ	\$6.00	(\$6.00)	\$0.00	\$0.00	\$0.00
Booking Center Fee (Philadelphia)	\$175.00	\$0.00	\$0.00	\$0.00	\$175.00
CJES	\$2.50	(\$2.50)	\$0.00	\$0.00	\$0.00
CQS Fee Felony (Philadelphia)	\$100.00	(\$56.21)	\$0.00	\$0.00	\$43.79
Commonwealth Cost - HB627 (Act 167 of 1992)	\$25.90	\$0.00	\$0.00	\$0.00	\$25.90
Costs of Prosecution - CJEA	\$50.00	\$0.00	\$0.00	\$0.00	\$50.00
County Court Cost (Act 204 of 1976)	\$37.80	\$0.00	\$0.00	\$0.00	\$37.80
Crime Victim Services and Compensation (Act 77 of	\$60.00	(\$60.00)	\$0.00	\$0.00	\$0.00
Criminal Lab Fee (Philadelphia)	\$135.00	(\$75.76)	\$0.00	\$0.00	\$59.24
DNA Detection Fund (Act 185-2004)	\$250.00	\$0.00	\$0.00	\$0.00	\$250.00
Domestic Violence Compensation (Act 44 of 1988)	\$10.00	\$0.00	\$0.00	\$0.00	\$10.00
Firearm Education and Training Fund	\$5.00	\$0.00	\$0.00	\$0.00	\$5.00
JCPS	\$21.25	(\$21.25)	\$0.00	\$0.00	\$0.00
Judicial Computer Project	\$8.00	(\$8.00)	\$0.00	\$0.00	\$0.00
OAG - JCP	\$2.50	(\$2.50)	\$0.00	\$0.00	\$0.00
State Court Costs (Act 204 of 1976)	\$17.30	\$0.00	\$0.00	\$0.00	\$17.30
OSP (Philadelphia) (Act 77 of 2022)	\$25.00	(\$674.03)	\$1,175.00	\$0.00	\$525.97
Civil Judgment/Lien (Philadelphia)	\$100.69	\$0.00	\$0.00	\$0.00	\$100.69
Costs/Fees Totals:	\$1,071.94	(\$946.25)	\$1,175.00	\$0.00	\$1,300.69
Grand Totals:	\$1,071.94	(\$946.25)	\$1,175.00	\$0.00	\$1,300.69

** - Indicates assessment is subrogated